

through erosion of the distinctiveness of Och-Ziff's brand, this conclusion being reached even without an equivalent finding of dilution in relation to Och-Ziff's Article 9(1)(c) infringement claim.

Practical significance

This case materially expands the scope of situations in which businesses in the UK can successfully prevent competitors from trading in a manner which damages their trade marks and/or goodwill. Such actions are not restricted to situations of confusion at point of sale, but now clearly encompass pre-sale confusion, at least where classic bait and switch conduct is involved. This result will please brand owners and reflects a growing acceptance of trade marks and brands having functions and protectable value beyond the core indication of origin function (see, Allgrove & O'Byrne, 'Pre-sale misrepresentations in passing off: an idea whose time has come or unfair competition by the back door?' (2006) 1(6) *JIPLP* 413 where the application of initial interest confusion in English law was canvassed).

This decision confirms judicial indications in recent years that passing off is not a static doctrine and that misrepresentations which create confusion pre-sale should, in appropriate situations, be actionable. It also brings the UK more into line with US case law and its doctrine of initial interest confusion. The flow of the Court's reasoning shows an acceptance that the common law tort of passing off has to take into account the nature of European trade mark law and evolve with it where the same mischief is being addressed and legislative policy has clearly been expressed.

An outstanding question is whether misrepresentations leading to damage in the absence of actual confusion (whether at the point of sale or otherwise) should be actionable in passing off. However, the argument that where trade mark protection had expanded to encompass a form of statutory unfair competition (ie taking unfair advantage without due cause under Article 9(1)(c) CTMR), the law of passing off may legitimately follow to encompass damaging misrepresentations in the absence of confusion was expressly rejected by the Court of Appeal in *L'Oreal & Ors v Bellure & Ors* [2007] EWCA Civ 936. *Och-Ziff* indicates that this is a door that is still worth pushing at on the right facts.

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■ Erasing ambush marketing

The Olympics, Paralympics and London Olympics Association Rights (Infringement Proceedings) Regulations 2010 **The London Olympics Association Right (LOAR) is an unusual beast – a time limited, *sui generis* right designed solely for economic reasons. It was brought to life in all its breadth and glory by the London Olympic Games and Paralympic Games Act 2006. It is a tool to prevent ambush marketing at the London Olympics. It dies without trace on 31 December 2012.**

Facts and analysis

The Olympic Symbols have been protected as trade marks even before they acquired their own Act in 1995. The London Olympics Association Right is not to be confused with The Olympic Association Right which was created in the Olympic Symbol etc. (Protection) Act 1995 (the '1995 Act') and enhanced and given a sister, the Paralympic Association Right in the 2006 Act. There are offences for infringing these broad long-term rights and Trading Standards Authorities already have the power to enforce them.

LOAR is something else. It covers everything that might bring to mind the Games that will dominate London and the entire United Kingdom from 27 July 2012 until 12 August 2012. It was made to be licensed to raise funds for the Games. There is even a requirement for a register of such users to be made available on the internet (London Olympics Act 2006, Schedule 4 para 5). So far there is a list of sponsors at www.london2012.com, but anyone can ask the London Organising Committee (LOCOG) for a copy of the register in writing. Infringement is a purely civil matter and the infringement and enforcement rights piggyback on to those in the 1995 Act.

Until 8 November 2010, when The Olympics, Paralympics and London Olympics Association Rights (Infringement Proceedings) Regulations 2010 come into force, remedies for infringement of the LOAR would have been the damages, injunctions and accounts available to the proprietor of any property right. Damages from an ambush marketer would be hard to quantify and harder to recover. Now, however, LOCOG has something a little more practical.

The High Court can order the erasure of a controlled representation, this being a sign that gives offence (London Olympics Act 2006, Schedule 4 para 10(2)(a)). It may be a visual or verbal representation of any kind that creates in the public mind an association between the London Olympics and goods or services or the provider of those goods or services. If the representation can be erased, removed or obliterated, that is the preference, but if the court feels their order is unlikely to be

complied with, or has not been complied with, the goods can be delivered up to someone else for it to be done. This is Regulation 2.

There are also Regulations 3 and 4 that work in tandem for delivery up and disposal of infringing goods. There is some balancing to be done by the judge here. He has to consider whether other remedies available in an action for infringement of LOAR would be adequate to compensate LOCOG and any licensee and protect their interests. Those with an interest in the goods have a right to appear and to appeal before the goods go up in flames or whatever more environmentally friendly method of disposal is ordered.

While LOAR at first sight seems exceedingly broad in scope, it does have a long list of defences. These are set out in Schedule 4 of the 2006 Act. They include use of one's own registered trade mark and various descriptive uses that mirror the Trade Marks Act. Narrow interpretations are to be expected of these defences. LOAR has been invoked by LOCOG in a Nominet dispute (DRS 08302 *LOCOG v David Tiley* 16 April 2010 before Anna Carboni) in which they recovered londonolympicgames-tickets.co.uk and 11 other ticket-related domains. The legal team at LOCOG will no doubt be eager to exploit their new powers if provoked.

Practical significance

The best advice for ambush marketers is not even to think about it. Nevertheless, it would seem a shame for these carefully drafted powers to lie unused. One hopes that a Chancery judge will be required to attend at the Olympic Park during the games to make Regulation 2 orders in case any unlicensed controlled representations are being displayed by ticketholders. The run-up to the Games is perhaps a more likely period for these powers to be used. It will be interesting to see how erasure orders work. While a poster or labelled product should present no difficulty, the obliteration of single adverts in larger publications and catalogues presents more of a challenge. As the excitement commences it seems likely LOCOG will be providing IP practitioners with some fun and Games of their own. The published ticket prices are substantial, but so is the cost of the Games so UK taxpayers are hoping that there will be more willing to pay to use the LOAR than to risk an action for infringement.

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Domain names

■ *ihateryanair.co.uk* transferred on proof of unfair detriment and unfair advantage in affiliate advertising links

Nominet Decision of the Independent Expert in Ryanair Limited and Robert Tyler (D00008527), 7 October 2010

The Expert considered Ryanair's complaint that the domain name *ihateryanair.co.uk* was an abusive registration. Ryanair relied upon its trade mark rights and goodwill in RYANAIR and complained that the domain name was abusive on a number of grounds. The Expert found that the website at the domain name was intended for legitimate criticism, but held that the domain name should be transferred on the basis that the website had contained commercial affiliate links that resulted in unfair detriment to the complainant and unfair advantage to the respondent.

Legal context

The complaint was made under Nominet's Dispute Resolution Policy, which sets out the rules which bind those who enter a contract to purchase a .uk domain name.

Facts

Budget airline Ryanair filed a complaint with Nominet's Dispute Resolution Service on 19 April 2010 in respect of the domain name *ihateryanair.co.uk*. The domain name had been registered by Robert Tyler on 13 February 2007 and pointed towards a website that was highly critical of the complainant's business. The website also included links to competing airlines such as Virgin Atlantic and British Airways, but the respondent derived no financial benefit from such links. However, between January and May 2010 the website included so-called commercial/affiliate links to third-party websites, which offered travel insurance and foreign currency services. The respondent derived financial benefit from these links in the sum of £322. These links had been removed by the time the Expert came to consider the issues before her.

The complainant relied on its trade mark rights and goodwill in the name RYANAIR to give it rights under the Policy. The complainant contended that the registration was abusive because the domain name had been registered and used in a way which both took unfair advantage of and was unfairly detrimental to the complainant's rights in its name. In particular, the complainant referred to paragraph 3(a)(i)(C) of the Policy: that the domain name was acquired with the intention of unfairly disrupting the complainant's business.